

Judge Text Orders

10/07/2025	160	TEXT ORDER. The record shows that the subpoenas at issue in Plaintiff's Motion to Expedite Reissuance of Subpoenas (Dkt. No. 138) were reissued by the Clerk of Court on October 2, 2025. (Dkt. Nos. 141; 142.) Accordingly, Plaintiff's 138 Motion is MOOT. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/7/2025.(dgar) (Entered: 10/07/2025)
10/09/2025	168	TEXT ORDER. Plaintiff has filed a notice withdrawing her Renewed Motion to Compel at Dkt. No. 140. (Dkt. No. 162.) Accordingly, the Court DISMISSES Plaintiff's 140 "Renewed Motion to Compel Party Discovery Responses, to Enforce Non-Party Subpoena Duces Tecum, and for Entry-Onto-Land Inspection Under Rule 34." IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/9/2025.(dgar) (Entered: 10/09/2025)
10/17/2025	183	TEXT ORDER denying 114 Motion to Compel. On September 22, 2025, Plaintiff filed a Motion to Compel (Dkt. No. 114) seeking a Court order "compelling nonparty Microsoft Corporation to comply with Plaintiff's subpoena duces tecum dated September 12, 2025." (Id. at 1.) In a response dated October 6, 2025, non-party Microsoft Corporation ("Microsoft") contends, inter alia, that Plaintiff's motion should be denied because it is moot and premature, and was filed in the wrong forum. (Dkt. No. 150 at 1.) Upon review, the undersigned agrees. First, Plaintiff filed her Motion to Compel (Dkt. No. 114) before Microsoft's time to respond expired. (See, e.g., Dkt. Nos. 150-1, 150-2.) As the Court has already informed Plaintiff, motions to compel filed before the response deadline has run will be denied as premature. (See Dkt. No. 118.) Further, as Microsoft correctly notes, Federal Rule of Civil Procedure 45 requires that "when a party seeks to compel a non-party's action pursuant to a subpoena duces tecum, the party must file its motion to compel in the district where the sought documents are located, not in the district where the subpoena was issued." Oakwood Prods., Inc. v. SWK Techs., Inc., No. 9:20-CV-04107-DCN, 2022 WL 7108844, at *8 (D.S.C. Oct. 12, 2022). Here, Plaintiff's Motion to Compel (Dkt. No. 114) fails to comply with the jurisdictional requirements of Rule 45(d)(2)(B)(i), and Microsoft has explicitly declined to consent to this Court's jurisdiction. (Dkt. No. 150 at 6.) Accordingly, Plaintiff's Motion to Compel must be DENIED pursuant to Federal Rule of Civil Procedure 45.

		Even assuming, arguendo, that Plaintiff could overcome the aforementioned defects, the Motion to Compel (Dkt. No. 114) is MOOT. Indeed, Microsoft's response states that "Microsoft has determined that there are no responsive documents within its possession, custody, or control, after conducting a reasonable investigation and complying with all applicable preservation obligations." (Dkt. No. 150 at 4.) Microsoft has attached evidence confirming the same as exhibits to its response (Dkt. Nos. 150-1, 150-2.) The Court cannot compel Microsoft to furnish information it does not possess. See, e.g., Moore v. BPS Direct, LLC, No. 2:17-CV-3228-RMG, 2019 WL 2912490, at *2 (D.S.C. July 8, 2019) ("It is axiomatic that a party cannot be ordered to produce documents that do not exist."); Jackson v. Wade, No. 1:20-CV-114 (LMB/IDD), 2021 WL 1536578, at *5 (E.D. Va. Apr. 19, 2021), appeal dismissed, 2021 WL 5447601 (4th Cir. Nov. 22, 2021) ("[A] subpoena can only direct an individual or entity to produce materials in their 'possession, custody, or control,' and thus cannot compel an entity to create a new document... out of whole cloth."). As such, Plaintiff's Motion to Compel (Dkt. No. 114) would alternatively be DISMISSED AS MOOT. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/17/2025.(dgar) (Entered: 10/17/2025)
10/17/2025	185	TEXT ORDER granting 163 Motion to Reissue Subpoenas; denying 180 Motion for Limited Relief. On October 8, 2025, Plaintiff filed a Motion to Reissue Subpoenas pertaining to subpoenas she previously issued to non-parties Verizon Wireless and Motorola Solutions, Inc. (Dkt. No. 163.) In her Motion, Plaintiff explains that "Verizon's Subpoena Compliance Department [informed her] that production could not be directed to Plaintiff's home address and must instead be returnable to... a third-party custodian." (Id. at 1.) Plaintiff explains that she has now designated a third party entity as her records custodian and therefore asks that the Court reissue an updated subpoena to Verizon Wireless. (Id.) Plaintiff further explains that her original subpoena to "Motorola Solutions, Inc." identified the wrong party and asks that the Court issue a subpoena for "Motorola Mobility, LLC" instead. (Id.) Upon review, the undersigned finds that Plaintiff's Motion to Reissue Subpoenas (Dkt. No. 163) should be GRANTED. The Clerk of Court is directed to issue the Third Party Subpoenas submitted by Plaintiff in connection with her Motion (Dkt. No. 170), and to return the issued subpoenas to Plaintiff for prompt service upon the third parties. Plaintiff is reminded that she is responsible for service of the subpoenas, in accordance with the provisions set forth in Rule 45 of the Federal Rules of Civil Procedure. Moreover, Plaintiff is responsible for paying all costs associated with the production of documents requested by the subpoenas.

		Further, it is not yet clear that non-parties Verizon Wireless and Motorola Solutions, Inc. will be unable to comply with the newly issued subpoenas by the November 5, 2025 discovery deadline. As such, Plaintiff's request to extend the discovery deadline on this basis (Dkt. No. 180) is DENIED, without prejudice and with leave to refile should non-parties Verizon Wireless and Motorola Solutions, Inc. indicate they are unable to comply with the newly issued subpoenas by November 5, 2025. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/17/2025.(dgar) (Entered: 10/17/2025)
10/17/2025	186	REFERENCE ORDER 185 denying 180 Motion Limited Relief. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/17/2025.(dgar) (Entered: 10/17/2025)
10/17/2025	190	TEXT ORDER denying 177 Motion to Compel; denying 177 Motion for Sanctions. On October 14, 2025, Plaintiff filed a Motion to Compel and Request for Sanctions (Dkt. No. 177) taking issue with Defense counsel's purported failure to produce "Curtiss-Wright employee Jeff Womack" for deposition. (Id. at 2.) Plaintiff specifically claims that Defense counsel has repeatedly misstated that Mr. Womack is on medical leave until November 2, 2025 and is therefore unable to be deposed until after that date. (See generally Dkt. Nos. 177, 177-2.) Accordingly, Plaintiff asks the Court to compel Mr. Womack's deposition and impose sanctions on Defense counsel for "bad-faith misrepresentations and interference with witness testimony." (Dkt. No. 177 at 34.) In support of her motion, Plaintiff has attached various exhibits, including her email correspondence with Defense counsel and screenshots of her personal text messages with Mr. Womack. (Dkt. Nos. 177-2, 177-3, 177-4, 177-5.) Contrary to Plaintiff's assertions, the exhibits attached to Plaintiff's motion indicate that Defense counsel has agreed to produce Mr. Womack for deposition upon his return to work and in advance of the discovery deadline, November 5, 2025. (Dkt. No. 177-2 at 5, 7, 8.) In light of Defense counsel's clear willingness to allow Plaintiff to depose Mr. Womack in advance of the discovery deadline, the undersigned sees no reason to compel Mr. Womack's deposition or impose sanctions on Defense counsel. Plaintiff's Motion to Compel and Request for Sanctions (Dkt. No. 177) is therefore DENIED. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/17/2025.(kman,) (Entered: 10/17/2025)
10/30/2025	200	TEXT ORDER granting 198 Motion for Extension of Time to Complete Discovery. On October 27, 2025, Plaintiff filed a Motion for Extension of Time to Complete Discovery requesting that the Court "extend the discovery period to December 5, 2025, for the limited purposed of completing third-party subpoena compliance with Verizon Wireless and Motorola Mobility, LLC" and that the Court "direct the Clerk of Court to reissue

		the subpoenas to Verizon Wireless and Motorola Mobility, LLC with updated production/compliance dates of December 5, 2025." (Dkt. No. 198.) In her motion, Plaintiff explains that this extension is necessary due to mailing delays and "rejection of the New Jersey domestication filing." (Id.) Upon review, the Court finds that Plaintiff's motion should be GRANTED. The Clerk of Court is instructed to reissue the requested subpoenas and mail them to Plaintiff at the address indicated on the docket. The undersigned notes that Plaintiff does not explain her reasons for pursuing the "domestication" procedure Plaintiff references in her motion, but it does not appear applicable to the subpoenas at issue here. See, e.g., <i>Calixte v. Simpson</i>, No. 1:21-MC-12, 2022 WL 2643502, at *1 (S.D. Ohio Jan. 5, 2022) ("The [Uniform Interstate Depositions and Discovery Act] provides this Court no authority to compel the requested discovery because it applies only in state court, not federal court."); <i>Bullard v. Norfolk S. Ry. Co.</i>, No. 7:23-CV-00930-LSC, 2024 WL 6874546, at *1 (N.D. Ala. July 10, 2024) (finding that "UIDDA does not apply in this case [because a] federal court does not fall under the [] statute's definition of a foreign jurisdiction from which a foreign subpoena is issued" and that "model UIDDA legislation... comments that the Act is limited to discovery in state courts." (internal quotation marks and citations omitted)). Rather, Plaintiff is responsible for service of the subpoenas in accordance with the provisions set forth in Rule 45 of the Federal Rules of Civil Procedure and is responsible for paying all costs associated with the production of documents requested by the subpoenas. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/30/2025.(kman,) (Entered: 10/30/2025)
11/06/2025	211	TEXT ORDER. On November 5, 2025, the Court received a Motion to Compel from Defendants (Dkt. No. 207) and a Motion to Compel Discovery, for Protective Order, and for Sanctions from Plaintiff (Dkt. No. 210). In light of these motions, the Court extends the mediation and motions deadlines by thirty (30) days. The Court will consider extending the discovery deadline as necessary upon resolution of the parties' pending motions. Mediation is now due by January 5, 2026 and motions are now due by February 4, 2026. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 11/06/2025. (kman) (Entered: 11/06/2025)
11/24/2025	222	TEXT ORDER: Plaintiff has filed objections to two discovery orders of the Magistrate Judge (Dkt. Nos. 192 and 194), which was entered on the docket on October 14, 2025. (Dkt. No. 219). Pursuant to Fed. R. Civ. P. 72(b)(2), Defendants may file responses to the objections within 14 days after the objections were entered on the docket or the date in which Plaintiff served Defendants with the objections, whichever is soonest. Plaintiff may file a reply

		to any response of the Defendants within 7 days thereafter. AND IT IS SO ORDERED. Entered at the direction of the Honorable Richard M Gergel on 11/24/2025. (ltap,) (Entered: 11/24/2025)
12/01/2025	232	TEXT ORDER granting 226 Motion for Extension of Time until 12/8/25 for Apple to file a Reply to Plaintiffs Objections. AND IT IS SO ORDERED. Entered at the direction of the Honorable Richard M Gergel on 12/1/2025.(ltap,) (Entered: 12/01/2025)
12/04/2025	237	TEXT ORDER. The Court extends the parties' deadline to complete the discovery implicated in the currently pending discovery motions to January 30, 2026. Further details regarding the discovery at issue are forthcoming. In light of the extended discovery deadline, the mediation deadline is extended to February 27, 2026 and the motions deadline is extended to March 31, 2026. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 12/04/2025. (kman,) (Entered: 12/04/2025)
12/04/2025	238	TEXT ORDER finding as moot 227 Motion for Protective Order. In light of the extended mediation deadline, Plaintiff's Motion for Protective Order Regarding Mediation Scheduling and Dates of Unavailability (Dkt. No. 227) is rendered MOOT. The Court asks Defendants to be mindful of Plaintiff's unavailability from December 20-27, 2025 and January 4-10, 2026. Defendants are further advised to include Plaintiff on their communications with the mediator regarding scheduling moving forward. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 12/04/2025. (kman,) (Entered: 12/04/2025)
12/04/2025	239	TEXT ORDER finding as moot 217 Motion for Extension of Time to Complete Discovery. In light of the Court's extension of the parties' deadline to complete the discovery implicated in the currently pending discovery motions, Defendants' Motion for Extension of Time to Complete Discovery (Dkt. No. 217) is rendered MOOT. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 12/04/2025.(kman,) (Entered: 12/04/2025)
12/15/2025	252	***DOCUMENT MAILED 251 Order on Motion to Compel, Order on Motion for Protective Order, Order on Motion for Sanctions, Order on Motion for Miscellaneous Relief,, Order on Motion to Quash,, 250 REPORT AND RECOMMENDATION re 93 MOTION to Dismiss filed by Shane Sablotsky, Curtiss Wright Electro Mechanical Corp., Stephanie Lanier placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 12/15/2025)

12/19/2025	263	TEXT ORDER finding as moot 257 Motion. On December 17, 2025, the Court received Plaintiff's Motion for Status and Expedited Ruling on Pending Discovery Motion, for Leave to Conduct Limited Discovery Related to Witness Nonparticipation and for Cost-Shifting (Dkt. No. 257). The Court already addressed the questions and concerns raised in Plaintiff's Motion (Dkt. No. 257) in its December 15, 2025 Order (Dkt. No. 251), which Plaintiff likely had not yet received at the time she filed her Motion (Dkt. No. 257) on December 17. Plaintiff's Motion (Dkt. No. 257) is therefore DISMISSED AS MOOT . As noted in the Court's December 15, 2025 Order, the deadline for new discovery in this case has expired. Thus, for purposes of clarity, the undersigned explicitly notes that Plaintiff's request for leave to issue additional third-party subpoenas requesting phone metadata is DENIED . Entered at the direction of Magistrate Judge Mary Gordon Baker on 12/19/2025.(kman,) (Entered: 12/19/2025)
12/19/2025	264	TEXT ORDER finding as moot 261 Motion. On December 18, 2025, the Court received Plaintiff's Emergency Motion to Quash Subpoena and for Protective Order (Dkt. No. 261) in which Plaintiff repeats the requests made in her earlier motions (Dkt. Nos. 210, 220). Again, the Court addressed Plaintiff's requests in its December 15, 2025 Order (Dkt. No. 251), which the undersigned assumes Plaintiff had not yet received at the time she filed her Motion (Dkt. No. 261) on December 18. Plaintiff's Motion (Dkt. No. 261) is therefore DISMISSED AS MOOT . Entered at the direction of Magistrate Judge Mary Gordon Baker on 12/19/2025. (kman,) (Entered: 12/19/2025)
12/19/2025	265	***DOCUMENT MAILED 262 Order, 264 Order on Motion to Quash, Order on Motion for Protective Order, Order on Motion for Issuance of Subpoena, 263 Order on Motion for Miscellaneous Relief, placed in U.S. Mail from Charleston Clerks Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 12/19/2025)
02/03/2026	285	TEXT ORDER denying 235 Motion for Default Judgment. On December 2, 2025, Plaintiff filed a Motion for Default Judgment (Dkt. No. 235) seeking, inter alia, an "entry of Default Judgment as a Terminating Sanction" against Defendants in light of their alleged "pervasive pattern of bad-faith litigation misconduct." (Id.) In her Motion, Plaintiff raises various qualms with the Court's handling of her case, and with Defendants' conduct throughout the litigation. (See generally id.) First, to the extent Plaintiff takes issue with discovery materials Defendants have or have not provided and/or any purported "procedural irregularities, missing filings, contradictory rulings, and evidence obstruction," the Court has already addressed these issues. (See, e.g., Dkt. Nos. 251, 262, 266.) Specific to Plaintiff's request for

		"entry of Default Judgment," the undersigned notes that "[t]he entry of default is a procedural prerequisite to the entry of a default judgment," <i>Eagle Fire, Inc. v. Eagle Integrated Controls, Inc.</i>, No. 3:06-cv-264, 2006 WL 1720681, at *5 (E.D. Va. June 20, 2006), and no entry of default has been made in this case. Because Plaintiff is pro se, the undersigned has alternatively construed her request as seeking the entry of default. See <i>Holmes v. Carroll</i>, No. 0:17-cv-1257-HMH-PJG, 2018 WL 1157189, at *1 n.2 (D.S.C. Mar. 5, 2018) (liberally construing pro se plaintiff's motion for default judgment as a request for entry of default). Entry of default is warranted "[w]hen a party against whom a judgment for affirmative relief is sought has failed to plead or otherwise defend, and that failure is shown by affidavit or otherwise." Fed. R. Civ. P. 55(a). Here, Defendants have not failed to plead or otherwise defend. Thus, Plaintiff's request for "entry of Default Judgment," whether construed as one for entry of default or default judgment, is DENIED. Plaintiff's motion also references Federal Rule of Civil Procedure 37 (Dkt. No. 235), requests that the Court impose default judgment as a "terminating sanction," and suggests various other potential sanctions the Court should impose against Defendants. (Id.) The Court does indeed have authority to sanction a party for failure to comply with the discovery process pursuant to Rule 37(d), Fed. R. Civ. P. However, prior to imposing sanctions under Rule 37, Fed. R. Civ. P., the district court must consider four factors: "(1) whether the non-complying party acted in bad faith, (2) the amount of prejudice that noncompliance caused the adversary, (3) the need for deterrence of the particular sort of non-compliance, and (4) whether less drastic sanctions would have been effective." <i>Belk v. Charlotte Mecklenburg Bd. of Educ.</i>, 269 F.3d 305, 348 (4th Cir. 2001). Upon careful review of Plaintiff's allegations and the current record, the Court finds no basis upon which to impose any sanctions on Defendants. Accordingly, Plaintiff's Motion (Dkt. No. 235) is DENIED IN FULL. Entered at the direction of Magistrate Judge Mary Gordon Baker on 02/03/2026.(kman,) (Entered: 02/03/2026)
02/03/2026	286	TEXT ORDER. On December 2, 2025, Plaintiff filed a Motion for Recusal (Dkt. No. 236) seeking to recuse the undersigned Magistrate Judge and the District Judge assigned to her case. In this motion, Plaintiff repeats many of the same arguments she made in her October 27, 2025 Motion for Recusal (Dkt. No. 199), which was denied by the Court on October 30, 2025 (Dkt. No. 204). On December 23, 2025, the District Judge assigned to this case filed an Order denying Plaintiff's December 2, 2025 Motion for Recusal (Dkt. No. 266), explaining that no reasonable, well-informed observer who assessed all of the facts and circumstances of this case could conclude that the District Judge's impartiality might reasonably be questioned. Though Plaintiff's Motion for Recusal (Dkt. No. 236) is no longer pending in light of the District Judge's December 23 Order (Dkt. No. 266), the

		undersigned notes, out of an abundance of caution, that Plaintiff's Motion for Recusal (Dkt. No. 236) is also DENIED as to the undersigned for the reasons set forth in the undersigned's October 30, 2025 Order and the reasons set forth in the District Judge's December 23, 2025 Order. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 02/03/2026. (kman,) (Entered: 02/03/2026)
02/03/2026	287	TEXT ORDER finding as moot 256 Motion to Amend/Correct. On December 17, 2025, Plaintiff filed a Motion to Correct the Record and the Docket (Dkt. No. 256) in which she "moves the Court to correct and clarify the docket and record to accurately reflect Plaintiff's filings submitted on November 6, 2025." (Id.) In her motion, Plaintiff takes issue with the Court's handling of her November 6, 2025 objections to the undersigned's October 20, 2025 and October 21, 2025 discovery orders. (Id.) More specifically, Plaintiff claims that she submitted her objections to the Court on November 6, 2025, but the filing was not docketed until November 14, 2025. (Id.) Plaintiff asks that the Court update the docket to reflect the same in order to avoid confusion and prevent prejudice to Plaintiff. (Id.) Upon review, the undersigned finds Plaintiff's motion (Dkt. No. 256) is MOOT. Indeed, review of the objections filed at Docket Number 219 makes clear that Plaintiff submitted her objections to the Court on November 6, 2025. (See Dkt. No. 219.) Further, the District Judge assigned to this case affirmed the discovery orders to which Plaintiff objected in an Order dated December 19, 2025. (Dkt. No. 262.) In that Order, the District Judge considered the merits of Plaintiff's objections and did not make any findings based upon the date on which Plaintiff's objections were filed. (Id.) As such, Plaintiff was not prejudiced by any purported delay in the Court's filing of the objections she submitted on November 6, 2025. Plaintiff's motion (Dkt. No. 256) should therefore be DISMISSED AS MOOT. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 02/03/2026.(kman,) (Entered: 02/03/2026)
02/03/2026	288	TEXT ORDER denying 241 Motion to Compel. On December 4, 2025, Plaintiff filed a Motion to Compel Compliance with Third Party Subpoenas (Dkt. No. 241) in which she takes issue with the subpoena responses (or lack thereof) she received from "[Apple,] Google, Microsoft, Verizon, Motorola Mobility, Honda/Acura, and Hunt Law LLC." (Id.) Subpoenas are governed by Federal Rule of Civil Procedure 45. A subpoena made on a non-party must state the place where compliance is required, which must be within 100 miles of where the subpoenaed non-party resides, is employed, or regularly transacts business in person. Fed. R. Civ. P. 45(a)(1)(A)(iii), (c)(2)(A). A subpoena that

		requires a non-party's compliance outside of Rule 45's geographical scope is invalid. See <i>Miller v. Holzmman</i>, 471 F. Supp. 2d 119, 121 (D.D.C. 2007). Federal Rule of Civil Procedure 37 governs motions to compel discovery responses. When filing a motion to compel discovery responses from a non-party, the motion must be made in the court where the discovery is or will be taken. Fed. R. Civ. P. 37(a), 45(d); see also <i>Oakwood Prods., Inc. v. SWK Techs., Inc.</i>, No. 9:20-cv-04107-DCN, 2022 WL 7108844, at *8 (D.S.C. Oct. 12, 2022) ("[W]hen a party seeks to compel a non-party's action pursuant to a subpoena duces tecum, the party must file its motion to compel in the district where the sought documents are located, not in the district where the subpoena was issued."). First, the Court has already considered Plaintiff's arguments regarding Apple and Hunt Law LLC and need not readdress them here. (See Dkt. Nos. 192, 194.) Second, the Court cannot compel compliance with the remaining non-party subpoenas because review of the record indicates that the subpoenas are invalid because they require compliance outside the geographical scope of Rule 45 and/or Plaintiff attempts to compel compliance in the wrong District Court. Fed. R. Civ. P. 37, 45. Plaintiff's motion (Dkt. No. 241) is therefore DENIED. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 02/03/2026.(kman,) (Entered: 02/03/2026)
02/03/2026	289	TEXT ORDER denying 271 Motion for Protective Order. On January 5, 2026, Plaintiff filed a Motion for Protective Order (Dkt. No. 271) in which she takes issue with "Defendants' production of extensive personal social-media materials" which Defendants produced in response to her Fourth Set of Requests for Production. (Id.) Plaintiff asks the Court to strike the materials, prohibit Defendants from relying upon them in this litigation, and enter a protective order barring further collection, production, or use of her personal social media content. (Id.) In response, Defendants contend that their "production of Plaintiff's public social media was in response to a request that Plaintiff served on September 30 in her Amended Deposition Notice." (Dkt. No. 281.) Specifically, Plaintiff requested: "All documents reflecting monitoring, viewing, tracking, reporting, or collection of Plaintiff's LinkedIn or other social media activity by CW employees or agents, including screenshots, page analytics, instructions to monitor, and resulting summaries." (Id.; see also Dkt. No. 281-1 at 6; Dkt. No. 281-2 at 3.) Defendants therefore produced screenshots of Plaintiff's public social media that it had collected, since those screenshots were responsive to Plaintiff's discovery request. Defendants further explain that Plaintiff's concerns about the materials produced are misplaced because none of the materials have been filed with the Court at this

		juncture and a protective order would be premature since Defendants have not indicated that they intend to use the specific materials with which Plaintiff's motion takes issue. (Dkt. No. 281.) The undersigned agrees with Defendants. The record shows that Plaintiff requested the materials Defendants produced, and the Court has already determined that Plaintiff's social media activity is discoverable. (Dkt. Nos. 251, 281.) Further, Plaintiff's request for a protective order is futile here, given that discovery has ended, a confidentiality order is in place, and, in any event, "[a]ll of the social media for which Plaintiff seeks a protective order is publicly available." (Dkt. No. 281.) Plaintiff's motion (Dkt. No. 271) is therefore DENIED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 02/03/2026.(kman,) (Entered: 02/03/2026)
02/03/2026	290	TEXT ORDER. On January 22, 2026, Defendants filed a Status Report regarding the status of mediation in this case, which is currently due by February 27, 2026. (Dkt. No. 283.) In their Status Report, Defendants explain that they have been unable to schedule mediation and that "Plaintiff informed the mediator that mediation scheduling should be paused until the United States Court of Appeals for the Fourth Circuit rules on Plaintiff's pending writ petitions." (Id.) Plaintiff confirms the same in a response to the Status Report filed on January 23, 2026. (Dkt. No. 284.) Based on the foregoing and in light of the history of this case, the undersigned excuses the parties from the mediation requirement at this time. It is also worth noting that Plaintiff's pending writ petitions do not automatically stay this case. As such, dispositive motions remain due by March 31, 2026. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 02/03/2026. (kman,) (Entered: 02/03/2026)
03/20/2026	303	TEXT ORDER denying 295 Motion to Stay. On February 18, 2026, Plaintiff filed a Motion to Stay (Dkt. No. 295) in which she asks the Court to: (1) stay all proceedings or, alternatively, stay enforcement of disputed discovery obligations, and (2) stay any ruling on Defendants' Motion for Sanctions (Dkt. No. 292) pending resolution of the Petition for Writ of Prohibition she filed in the United States Court of Appeals for the Fourth Circuit. Upon review, the undersigned sees no reason to stay the instant litigation and therefore DENIES Plaintiff's motion (Dkt. No. 295). As the Court has previously noted, (Dkt. No. 290), Plaintiff's pending writ petitions do not automatically stay this case. See <i>El-Bey v. North Carolina</i>, No. 3:17-cv-272-FDW, 2017 WL 4707034, at *1 (W.D.N.C. Oct. 19, 2017) ("The Federal Rules of Civil Procedure do not provide for an automatic stay of proceedings in the district court while a petition for an extraordinary writ is pending in the appellate court."); <i>Ellis v. U.S. Dist. Ct. for W. Dist.</i>

		of Washington, 360 F.3d 1022, 1023 (9th Cir. 2004) ("[A] district court does not lose jurisdiction over a case merely because a litigant files an interlocutory petition for an extraordinary writ."). Although an appellate court may stay district court proceedings while a petition for extraordinary relief is pending, the jurisdiction of the district court is not interrupted absent such a stay. Woodson v. Surgitek, Inc., 57 F.3d 1406, 1416 (5th Cir. 1995). In her related Fourth Circuit case, Plaintiff has sought, but the Fourth Circuit has not yet granted, a stay of these proceedings pending the Fourth Circuit's consideration of Plaintiff's Petition for Writ of Prohibition. Unless and until informed otherwise by the Fourth Circuit, this Court is not foreclosed from ruling on the pending motions in this case and will continue to adjudicate Plaintiff's claims. Entered at the direction of Magistrate Judge Mary Gordon Baker on 03/20/2026.(kman,) (Entered: 03/20/2026)
03/27/2026	307	TEXT ORDER. The Court stays the dispositive motions deadline pending resolution of Defendants' Motion for Sanctions (Dkt. No. 292). IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 03/27/2026. (kman,) (Entered: 03/27/2026)
05/05/2026	318	TEXT ORDER. In light of the District Judge's Order (Dkt. No. 316), dispositive motions on Plaintiff's surviving claims are due by June 15, 2026. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 5/5/26. (akob,) (Entered: 05/05/2026)